

Track 1 — Chapter Build Pass

MPEP Chapter 2300 · Interference and Derivation Proceedings

Track 1 — Chapter Build Pass. Format: plain-English rule card → one worked example → one quiz question, per rule. A chapter close-out practice set and a memorize-this list follow, with all quiz answers consolidated in an Answer Key on the final pages. Read entirely offline — no interaction required.

Accuracy note: content is drawn from your uploaded MPEP file, translated into plain English. Spot-check anything with a specific legal test, number, or citation against your MPEP if precision matters for a specific question.

Overview: Priority Disputes, Old and New

This chapter has real conceptual overlap with the AIA-vs-pre-AIA §102 distinction covered in the Novelty PDF: the first-to-invent regime needed a priority-contest mechanism (interference); AIA's first-inventor-to-file regime replaced that with a narrower anti-copying mechanism (derivation). Keep the two straight and know which one a fact pattern's filing date puts you in.

Rule 1: Interference vs. Derivation — Which Applies When (§2301)

PLAIN ENGLISH

Interference practice (priority disputes between rival inventors over who invented first) applies to pre-AIA, first-to-invent applications. **Derivation proceedings** replaced interference for AIA (first-inventor-to-file) applications — since AIA doesn't ask "who invented first," derivation instead asks a narrower question: did the earlier-filing applicant actually **derive** the claimed invention from the petitioner, without authorization, rather than invent it independently?

EXAMPLE

Two independent AIA applicants file claims to the same invention, having genuinely each independently invented it themselves with no copying. Because there's no derivation (no one stole the invention from the other), there's no basis for a derivation proceeding, even though both are claiming the same thing — this would have been an interference matter under old pre-AIA law, but AIA has no independent-invention priority contest.

QUIZ

Under the AIA, two applicants independently and honestly invent the same thing at roughly the same time, with no copying by either. What proceeding, if any, resolves priority between them?

- (A) Interference
- (B) Derivation proceeding
- (C) Neither — AIA is first-inventor-to-file, so whoever has the earlier effective filing date generally prevails, with derivation only available for actual copying
- (D) A reexamination proceeding

Rule 2: Requirements to Petition for a Derivation Proceeding (§2412)

PLAIN ENGLISH

A petitioner must show: (1) the respondent's claimed invention was **derived** from an inventor named in the petitioner's application, (2) that derivation was **without authorization**, and (3) the petitioner's application has an effective filing date no more than **1 year** after the first publication or issuance of a claim to the derived invention by the respondent. Substantial evidence must support the derivation allegation.

EXAMPLE

An inventor discloses their invention in confidence to a business partner, who then files a patent application claiming that same invention without permission. The original inventor can petition for a derivation proceeding, provided they file within 1 year of the partner's application being published or issuing with the derived claim.

QUIZ

What is the deadline to petition for a derivation proceeding, measured from the respondent's first publication/issuance of the derived claim?

- (A) 6 months
- (B) 1 year
- (C) 2 years
- (D) There is no deadline

Rule 3: What Derivation Does NOT Address (§2310)

PLAIN ENGLISH

Derivation proceedings resolve **only** whether derivation occurred — they do not resolve general questions of inventorship correction (handled separately, see Chapter 600 PDF), nor do they function as a general priority contest for independent inventors. If there's no allegation of actual derivation (unauthorized copying), a derivation proceeding is the wrong tool.

EXAMPLE

Two labs independently develop the same technology with no contact or copying between them. Neither can properly petition for a derivation proceeding against the other, since derivation requires an actual theft/copying relationship, not just competing claims to similar subject matter.

QUIZ

Can a derivation proceeding be used simply because two unrelated applicants are claiming similar subject matter, with no allegation of copying?

- (A) Yes, similarity alone is sufficient
- (B) No — an actual derivation (unauthorized copying) allegation, with evidence, is required
- (C) Yes, if both applications were filed the same year
- (D) No, derivation proceedings no longer exist

Rule 4: Pre-AIA Interference — Legacy Concept Still Testable (§2301, pre-AIA)

PLAIN ENGLISH

For pre-AIA (first-to-invent) applications, an **interference** could be declared between two applications/patents claiming the same or substantially the same invention, to determine who was the first true inventor (considering conception, reduction to practice, and diligence). This is a legacy concept for applications with a pre-March-16-2013 effective filing date, and its underlying "first to invent" priority logic doesn't carry over to AIA applications at all.

EXAMPLE

Under pre-AIA rules, if two inventors both filed for the same invention, an interference proceeding could examine which of them conceived the invention first and was reasonably diligent in reducing it to practice — factors entirely irrelevant to a modern AIA priority determination, which just looks at filing dates.

QUIZ

Under pre-AIA interference practice, which factors were relevant to determining priority between rival inventors?

- (A) Only the filing date
 - (B) Conception, reduction to practice, and diligence
 - (C) Only who paid the higher filing fee
 - (D) Only which application published first
-

Chapter Close-Out: Mixed Practice Set

Mixing all rules above, in exam-style fact patterns. Answers are in the Answer Key at the end.

1. Which type of proceeding applies to applications governed by the AIA (first-inventor-to-file)?

- (A) Interference
- (B) Derivation proceeding
- (C) Both apply equally
- (D) Neither applies to AIA applications

2. A petitioner wants to file for a derivation proceeding 14 months after the respondent's claim to the derived invention was published. Is this timely?

- (A) Yes, well within any deadline
- (B) No — the 1-year deadline from publication/issuance has passed
- (C) Yes, because there is no deadline for derivation petitions
- (D) No, derivation petitions must be filed before any publication

3. What must a derivation petitioner show, beyond just claiming similar subject matter?

- (A) Nothing more is required
- (B) That the respondent derived the claimed invention from the petitioner's named inventor, without authorization
- (C) That the respondent filed second in time only
- (D) That the respondent's application is defective under §112

4. Under pre-AIA interference practice, which of the following was NOT a relevant factor for priority?

- (A) Conception date
- (B) Reduction to practice
- (C) Diligence
- (D) The applicant's citizenship

5. True or False: Derivation proceedings can resolve general inventorship correction disputes unrelated to any allegation of copying.

- (A) True
- (B) False

Memorize This: Key Tests & Terms

- **AIA** → derivation proceedings; **pre-AIA** (before March 16, 2013) → interference. Know which regime a fact pattern is in.
- Derivation requires an actual **unauthorized copying** allegation with evidence — not just overlapping claims.
- Derivation petition deadline: **1 year** from the respondent's first publication/issuance of the derived claim.
- Pre-AIA interference priority factors: **conception, reduction to practice, diligence** — irrelevant under AIA.
- Derivation ≠ general inventorship correction — different tools for different problems.

Answer Key

All quiz answers for this PDF, in one place. Rule-card quizzes first, then the chapter close-out set.

Rule-Card Quizzes

Rule 1: Interference vs. Derivation — Which Applies When (§2301)

Under the AIA, two applicants independently and honestly invent the same thing at roughly the same time, with no copying by either. What proceeding, if any, resolves priority between them?

Answer: C

This is the single most important conceptual shift in this chapter: AIA replaced the "who invented first" priority contest with a filing-date rule, reserving derivation proceedings narrowly for actual copying/theft situations, not honest independent invention.

Rule 2: Requirements to Petition for a Derivation Proceeding (§2412)

What is the deadline to petition for a derivation proceeding, measured from the respondent's first publication/issuance of the derived claim?

Answer: B

The 1-year window is a hard, specific, testable deadline — miss it and the derivation petition is untimely, regardless of how strong the derivation evidence is.

Rule 3: What Derivation Does NOT Address (§2310)

Can a derivation proceeding be used simply because two unrelated applicants are claiming similar subject matter, with no allegation of copying?

Answer: B

Mere overlap in claimed subject matter isn't enough — derivation specifically requires an allegation and evidentiary showing of actual unauthorized copying from the petitioner.

Rule 4: Pre-AIA Interference — Legacy Concept Still Testable (§2301, pre-AIA)

Under pre-AIA interference practice, which factors were relevant to determining priority between rival inventors?

Answer: B

Pre-AIA priority turned on the classic first-to-invent factors — conception, reduction to practice, and diligence — a fundamentally different inquiry from the AIA's filing-date-based system.

Chapter Close-Out Quiz

1. (B)

Derivation proceedings are the AIA-era replacement for interference, applicable to first-inventor-to-file applications.

2. (B)

14 months exceeds the 1-year deadline running from the respondent's first publication or issuance of the derived claim — untimely.

3. (B)

Unauthorized derivation (actual copying) from the petitioner's named inventor is the core substantive showing required — mere overlapping subject matter isn't enough.

4. (D)

Citizenship was never a relevant factor for pre-AIA priority determinations; conception, reduction to practice, and diligence were the operative factors.

5. (B) False

Derivation proceedings are narrowly focused on the derivation (copying) question — general inventorship correction is a separate process (see Chapter 600).

End of Chapter 2300 (Interference/Derivation) — this completes the full Track 1 chapter set.